

out appointment, as before it appeareth. 2. ^b The judges of either bench and barons of the exchequer are of the kings council for matter of law, &c. and the two chief justices, or in their absence other two justices, are standing judges of this court. 3. The lords of parliament are properly *de magno concilio regis*, but neither these, being not of the kings privy councill, nor any of the rest of the judges or barons of the exchequer are standing judges of this court.

^b 39 E. 3. 5.
19 E. 3. Judg-
ment. 174.
W. 1. ca. 1.
17 E. 2. *Stat. de*
Templariis.
16 R. 2. *Stat. de*
Premunire.
43 Aff. pl. 15.
Regist. 124, 125.
191. 27 H. 6. 5.

^c 27 Aug. 5 H. 4. in the exchange between the king and the earl of Northumberland, in *turre*. 37 E. 3. ca. 18. &c. Note the parliament is called *commune concilium*.

The name of this court.

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It is now, and of ancient time hath been called the chamber of the ^d stars, the ^e star-chamber, the ^f starred chamber, in respect the roof of the court is garnished with golden stars. Some have imagined that it should be called the star-chamber, because *crimina stellionat* are there handled: others of this Saxon word *stecran*, to steer or rule as doth the pilot, because this court doth steer and govern the ship of the common-wealth. Others, because it is full of windows: but the true cause of the name is, because, as is aforesaid, the roof is starred. In all records in Latin, it is called *camera stellata*.

^d 41 E. 3. ubi sup.
^e In many of the records before cited.
^f 25 H. 8. ca. 1.
Lambard.
Sir Tho. Smith.
lib. 2. ca. 4.

The process in this court is *suppana*, attachment, process of rebellion, &c. all under the great seal.

The process.

Officers of the court sworn.

In this court there is the clerk of the councill, which is an office of great account, and trust, for he is to receive, endorse, enter, keep, and certifie the bills, pleadings, records, orders, rules, sentences and decrees of the court: and I find that in former times men of great account have had that office in this court: as to give you a little taste thereof: king H. 6. by his letters patents, 15 July *anno regni sui* 22. granted the same to Thomas Kent doctor of the law for his life, calling him *clericum concilii nostri*, and soon after swore him of his privy councill. King H. 7. *anno* 1. of his reign, granted the same office to John Bladefwell doctor of laws for term of his life: but hereof this little taste shall suffice.

Lastly, it remaineth to be seen what jurisdiction this court hath in punishment, and where, and in what cases this court may inflict punishment by pillory, papers, whipping, losse of ears, tacking of ears, *stigmata* in the face, &c. (For it extendeth not to any offence that concerns the life of man or obtruncation of any member, the ears only excepted, and those rarely and in most hainous and detestable offences.) But herein the surest rule is, that seeing it is an ancient court, the presidents of the court are to be followed, and the rather for that the court consisteth of such learned and honourable judges. And novelties without warrant of presidents are not to be allowed: generally some certain rules are to be followed, especially where no presidents are extant in the case. * *Quod arbitrio judicis relinquitur, non facile trahit ad effusionem sanguinis*: for generall acts of parliament which inflict punishment, viz. *sur for-seiture de corps et de avoir*, &c. these are expounded not to extend to life, or member, but to imprisonment, &c.

Ecclesiasticus
20. 8. *Qui potestatem sibi sumit injuste, adiatur.*
* See *statut. de moneta tempis*
E. 1. 35 E. 1.
de Carlisle.
20 E. 3. ca. 4.
Vid. 23 El. ca. 2.
And note where he shall lose his ears for defamation of the queen.

See the first part of the Institutes, sect. 745. verb. Felony. *Major*

jore pœna affectus, quam legibus statut' est, non est infamis. Pœna gravior ultra legem posita æstimationem conservat. Confessus in jure pro judicâto habetur, cum quodammodo sua sententia damnatur. Cum consensu sponte mitius est agendum.

In hac curia non agitur de delictis ordinariis, ne dignitas hujus curiæ vilesceret.

Quicquid judicis auctoritati subjicitur, novitati non subjicitur.

[67]

C A P. VI.

A Court for Redresse of Delayes of Judgements in the Kings great Courts.

24 E. 3. cap. 5.
stat. 1.
Rot. parl. 2 R 2.
nu. 63. confirm-
ed by parliament.

Judgements de-
layed.

* Nota, by good
advice of the
chancellour,
treasurer, and
justices.

Good accord.

Vide Regist.
fo. 124. b.
Rex Johanni de
B. Militi, &c.

THIS court is raised by the statute of 14 E. 3. which followeth in these words.

Item, Because divers mischieves have happened of that, that in divers places, as well in the chancery, as in the kings bench, the common bench, and in the exchequer, before the justices assigned, and other justices to hear and determine deputed, the judgements have been delayed, sometimes by difficulty, sometimes by divers opinions of the judges, and sometime for some other cause: it is assented, established, and accorded, that from henceforth at every parliament shall be chosen a prelate, two earls, and two barons, which shall have commission and power of the king to heare by petition delivered unto them the complaints of those that will complaine them of such delayes and grievances made, and they shall have power to do come before them at Westminster, or elsewhere, where the places or any of them shall be, the tenor of records and proceses of such judgements so delayed, and to cause the same justices to come before them, which shall be then present to hear their cause and reasons of such delayes: which cause and reason so heard by * good advice of themselves, the chancelor, treasurer, the justices of the one bench, and of the other, and other of the kings counsell, as many and such as shall seem convenient, shall proceed to take a good accord, and make a good judgement: and according to the same accord so taken, the tenor of the same record, together with the judgement which shall be accorded, shall be remaunded before the justices, before whom the plea did depend; and that they shall give judgement according to the same record: and in case it seemeth to them that the difficulty be so great, that it may not well be determined without assent of the parliament, that the said tenor or tenors shall be brought by the said prelate, earles, and barons in the next parliament